

SENATE No. 748

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to relative to an underinsurance issue.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 748

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 748) of Paul R. Feeney relative to an motor vehicle underinsurance. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 947 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to relative to an underinsurance issue.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph 2 of section 113L of Chapter 175 of the General Laws, as so
2 appearing in the 2022 Official Edition, is hereby amended by inserting after the first sentence the
3 following sentence: -

4 The coverage described in this paragraph shall also apply when, by reason of payment of
5 judgment or settlement, the bond amount or policy limit of the tortfeasor has been reduced by the
6 payment of multiple claims arising from the same accident to an amount less than the policy
7 limit for uninsured motor vehicle coverage, and only to the extent that the uninsured motor
8 vehicle coverage limits exceed the amount paid to the insured pursuant to the exhausted bodily
9 injury liability bond or policy.